

GAHC010171222025



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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : WP(C)/4439/2025

SALEHA BEGUM
W/O HAFIZUR RAHMAN MALLIK, D/O ABDUL KHALEK, VILL- JAHUR
PAM, P.O.- JAHUR PAM, P.S.- BARPETA, DIST- BARPETA, ASSAM

VERSUS

THE UNION OF INDIA AND 6 ORS
REPRESENTED BY THE SECRETARY TO THE GOVT. OF INDIA, MINISTRY
OF HOME AFFAIRS, NEW DELHI-110001

2:THE ELECTION COMMISSION OF INDIA
REPRESENTED BY THE CHIEF ELECTION COMMISSION
NEW DELHI-110001

3:THE STATE OF ASSAM
REPRESENTED BY THE COMMISSIONER AND SECRETARY TO THE GOVT.
OF ASSAM
HOME DEPARTMENT
DISPUR
GUWAHATI-6

4:THE STATE COORDINATOR
NATIONAL REGISTER OF CITIZENS OF ASSAM
DISPUR
GUWAHATI-06

5:THE DISTRICT COMMISSIONER
BARPETA
P.O. AND P.S.- BARPETA
ASSAM

6:THE DISTRICT ELECTION OFFICER

BARPETA
P.O. AND P.S.- BARPETA
ASSAM

7:THE SUPERINTENDENT OF POLICE (B)
BARPETA
ASSA

For the petitioner (s) : Mr. A. M. Khan, Advocate

For the respondent (s) : Ms. P. Baruah, SC, ECI
Mr. G. Sarma, Advocate
Mr. G. Bokolial, Govt. Advocate

BEFORE
HONOURABLE MR. JUSTICE DEVASHIS BARUAH

Date of Hearing : 08.08.2025

Date of Judgment : 08.08.2025

JUDGMENT AND ORDER (ORAL)

Heard Mr. A. M. Khan, the learned counsel appearing on behalf of the petitioner. Ms. P. Baruah, the learned counsel appears on behalf of the respondent No.2; Mr. G. Sarma, the learned counsel appears on behalf of the respondent Nos.3, 4 & 7 and Mr. G. Bokolial, the learned Government Advocate appears on behalf of the respondent Nos.5 & 6.

2. The case of the petitioner herein is that in the voters list of 2005, the name of the petitioner was marked with the letter "D" and thereupon the petitioner has approached the concerned

respondent authorities for removal of the tag "D" in her name from the voters lists. As the concerned respondent authorities had failed to do so, the petitioner is before this Court under Article 226 of the Constitution of India for an appropriate direction that the letter "D" tagged with the name of the petitioner in the voters list be removed.

3. Whether a person is a "D" voter or not is a matter of factual determination and the appropriate forum to do the same is the concerned Foreigners Tribunal. This Court in exercise of its powers under Article 226 of the Constitution of India would not have the competence to decide such a question which depends on the evidence that may be produced.

4. In the circumstances, this Court therefore directs the respondent No.7 i.e., the Superintendent of Police (Border), Barpeta to verify as to whether the petitioner has already been referred to the concerned Foreigners Tribunal, and if upon verification it is found that the petitioner has not been referred to the concerned Foreigners Tribunal, this Court further directs the said respondent No.7 to refer the case of the petitioner as regards the mark "D" in the voters list in respect to 43 No. Barpeta LAC to a competent Foreigners Tribunal, Barpeta district for an appropriate adjudication as regards the status of the petitioner as "D" voter in the concerned voters list.

5. Reference be made within a period of 2 (two) months from the date of receipt of a certified copy of this order. Upon such reference being made, the petitioner may participate in such proceedings and establish her case.

6. If the case of the petitioner as per the records had already been referred to the relevant Foreigners Tribunal, there would be no requirement to make any further reference and the detailed information of the earlier reference be communicated to the petitioner.

7. With the above directions and observations, the instant writ petition stands disposed of.

JUDGE

Comparing Assistant